

		To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n</i>, <i>supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Here, Defendant has filed a memorandum of costs, (see ROA #998), and Plaintiff has filed a motion to strike and/or tax costs, (see ROA #1006). Therefore, the court should properly decide the issue of costs when it hears the motion to strike and/or tax costs and Defendant's request for costs in this motion is premature. Accordingly, the court will deny Defendant's motion for costs without prejudice. Plaintiff shall give notice of this ruling.
10	Cano vs. O'Grady 30-2024-01410607	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is not tentative ruling in this matter. The court will hear oral argument from the parties or their counsel.

11	Carlin vs. Reiser 30-2025-01454477	<u>Joinder to Motion</u> Defendant David A. Esquibias' Joinder to the Motion to Dismiss Glen M. Reiser (Ret.) as A Defendant is GRANTED. The court previously granted Defendant Hon. Glen M. Reiser (Ret.)'s Motion to Dismiss as a Defendant. (See ROA #252.) Plaintiffs Gary R. Carlin and Law Offices of Cary R. Carlin, APC have not opposed this joinder or provided any reason why it should not be granted. Thus, Plaintiffs have waived any arguments regarding the joinder. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the joinder. Defendant David A. Esquibias shall give notice of this ruling.